

Short title and
citation.

2. This Act may be cited as the Agriculture and Technical Instruction (Ireland) (No. 2) Act, 1902, and may be cited with the Agriculture and Technical Instruction (Ireland) Acts, 1899 to 1902.

CHAPTER 34.

An Act to amend the Law with reference to Applications for Patents and Compulsory Licences, and other matters connected therewith. [18th December 1902.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Examination
of previous
specifications
in United
Kingdom on
applications
for patents.
46 & 47 Vict.
c. 57.

1.—(1) Where an application for a patent has been made and a complete specification has been deposited by the applicant, the examiner shall forthwith, in addition to the inquiries which he is directed to make by the Patents, Designs, and Trade Marks Act, 1883 (in this Act referred to as the principal Act), make a further investigation for the purpose of ascertaining whether the invention claimed has been wholly or in part claimed or described in any specification (other than a provisional specification not followed by a complete specification) published before the date of the application, and deposited pursuant to any application for a patent made in the United Kingdom within fifty years next before the date of the application.

(2) If on investigation it appears that the invention has been wholly or in part claimed or described in any such specification, the applicant shall be informed thereof, and the applicant may, within such time as may be prescribed, amend his specification, and the amended specification shall be investigated in like manner as the original specification.

(3) The examiner shall report to the comptroller the result of his investigations in such manner as the Board of Trade may direct.

(4) The provisions of subsection five of section nine of the principal Act, as amended by any subsequent enactment, shall apply to reports under this section.

(5) If the comptroller is satisfied that no objection exists to the specification on the ground that the invention claimed thereby has been wholly or in part claimed or described in a previous specification as before mentioned, he shall, in the absence of any other lawful ground of objection, accept the specification.

(6) If the comptroller is not so satisfied, he shall, after hearing the applicant, and unless the objection be removed by amending the specification to the satisfaction of the comptroller, determine whether a reference to any, and, if so, what, prior specifications ought to be made in the specification by way of notice to the public.

(7) An appeal shall lie from the decision of the comptroller under this section to the law officer.

(8) Section eight of the principal Act and section three of the Patents, Designs, and Trade Marks (Amendment) Act, 1885 (which regulate the time for depositing a complete specification), shall have effect as if references therein to the period of nine months were references to the period of six months. 48 & 49 Vict.
c. 63.

(9) The investigations and reports required by this section shall not be held in any way to guarantee the validity of any patent, and no liability shall be incurred by the Board of Trade or any officer thereof by reason of, or in connexion with, any such investigation or report, or any proceeding consequent thereon.

(10) The Board of Trade, with the sanction of the Treasury, may prescribe an additional fee not exceeding one pound in respect of the investigation mentioned in this section, which shall be payable on the sealing of the patent.

(11) This section shall come into operation at such date as the Board of Trade may by order direct, and shall apply only to applications made after that date, and the order shall be laid before both Houses of Parliament.

2. An invention covered by any patent granted on an application to which section one of this Act applies shall not be deemed to have been anticipated by reason only of its publication in a specification deposited pursuant to an application made in the United Kingdom not less than fifty years before the date of the application for a patent therefor, or of its publication in a provisional specification of any date not followed by a complete specification. Limitation as
to anticipation.

3. Section twenty-two of the principal Act (relating to the grant of compulsory licences by the Board of Trade) is hereby repealed, and the following provisions shall be substituted therefor :— Amendment of
law relating to
compulsory
licences.

- (1) Any person interested may present a petition to the Board of Trade alleging that the reasonable requirements of the public with respect to a patented invention have not been satisfied, and praying for the grant of a compulsory licence, or, in the alternative, for the revocation of the patent ;
- (2) The Board of Trade shall consider the petition, and if the parties do not come to an arrangement between themselves, the Board of Trade, if satisfied that a *prima facie* case has been made out, shall refer the petition to the Judicial Committee of the Privy Council, and, if the Board are not so satisfied, they may dismiss the petition ;
- (3) Where any such petition is referred by the Board of Trade to the Judicial Committee, and it is proved to the satisfaction of the Judicial Committee that the reasonable requirements of the public with reference to the patented invention have not been satisfied, the patentee may be ordered by an Order in Council to grant licences on such terms as the said Committee may think just, or, if the Judicial Committee are of opinion that the reasonable requirements of the public will not be

satisfied by the grant of licences, the patent may be revoked by Order in Council ;

Provided that no order of revocation shall be made before the expiration of three years from the date of the patent, or if the patentee gives satisfactory reasons for his default ;

- (4) On the hearing of any petition under this section, the patentee and any person claiming an interest in the patent as exclusive licensee, or otherwise, shall be made parties to the proceeding, and the law officer, or such other counsel as he may appoint, shall be entitled to appear and be heard ;
- (5) If it is proved to the satisfaction of the Judicial Committee that the patent is worked, or that the patented article is manufactured, exclusively or mainly outside the United Kingdom, then, unless the patentee can show that the reasonable requirements of the public have been satisfied, the petitioner shall be entitled either to an order for a compulsory licence or, subject to the above proviso, to an order for the revocation of the patent ;
- (6) For the purposes of this section the reasonable requirements of the public shall not be deemed to have been satisfied if, by reason of the default of the patentee to work his patent, or to manufacture the patented article in the United Kingdom to an adequate extent, or to grant licences on reasonable terms, (a) any existing industry or the establishment of any new industry is unfairly prejudiced, or (b) the demand for the patented article is not reasonably met ;
- (7) An Order in Council directing the grant of any licence under this section shall, without prejudice to any other method of enforcement, operate as if it were embodied in a deed granting a licence and made between the parties to the proceeding ;
- (8) His Majesty in Council may make rules of procedure and practice for regulating proceedings before the Judicial Committee under this section, and, subject thereto, such proceedings shall be regulated according to the existing procedure and practice in patent matters. Any Order in Council, or any order made by the Judicial Committee under this Act, may be enforced by the High Court as if it were an order of the High Court ;
- (9) The costs of and incidental to all proceedings under this section shall be in the discretion of the Judicial Committee, but, in awarding costs on any application for the grant of a licence, the Judicial Committee may have regard to any previous request for, or offer of, a licence made either before or after the application to the Committee ;
- (10) For the purposes of this section, three members of the Judicial Committee shall constitute a quorum ;
- (11) This section shall apply to patents granted before, as well as after, the commencement of this Act.

by other officers under the direction of the Board of Trade) the words "in his absence" shall be repealed.

5. This Act may be cited as the Patents Act, 1902, and may be cited, and shall be construed, as one with the Patents, Designs, and Trade Marks Acts, 1883 to 1901. Short title and construction.

CHAPTER 35.

An Act to amend the borrowing provisions of the Electric Lighting Act, 1882, and the Electric Lighting (Scotland) Act, 1890. [18th December 1902.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. The amount which a local authority within the meaning of the schedule to the Electric Lighting (Scotland) Act, 1890, may borrow under section eight of the Electric Lighting Act, 1882, shall not be subject to any limit imposed on the amount which such local authority may borrow for the purposes of its gas taking: Provided that every loan so borrowed, with the consent of the Secretary for Scotland, after the passing of this Act, shall be repaid by the local authority within a period not exceeding thirty years from the date of borrowing. Amount and period of repayment of loans for electric lighting. 53 & 54 Vict. c. 13. 45 & 46 Vict. c. 56.

2. Nothing in this Act shall affect any loan borrowed before the passing of this Act. Saving.

3. This Act may be cited as the Electric Lighting (Scotland) Act, 1902, and shall extend only to Scotland. Short title and extent.

CHAPTER 36.

An Act to amend the Mail Ships Act, 1891.

[18th December 1902.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) For subsection (2) of section three of the Mail Ships Act, 1891, the following subsection shall be substituted:— Amendment of 54 & 55 Vict. c. 31 as to security for ships engaged in postal service.

"(2) The security shall be the bond of the owner guaranteed,

" at his option, either—

" (a) by one or more responsible sureties (whether natural

" or corporate persons) permanently resident within the

" jurisdiction of the High Court; or